

POLICY BRIEF: ANIMALS IN THE GLOBAL PACT FOR THE ENVIRONMENT



INTRODUCTION

As civil society organizations concerned primarily with the welfare of animals, we note that to date environmental law and animal law have been developed in separate silos. This is unfortunate because animal welfare is intrinsically linked to both human and environmental well-being. For example, the industrial production of animals for food results not only in poor welfare for animals, but is also a major contributor to water, soil and air pollution and has a high reliance on inputs like water, land, energy, pesticides and fertilizers; as well as having negative health and socioeconomic impacts (for example, increasing non-communicable diseases and the risk of antimicrobial resistance, and affecting livelihoods and job opportunities in rural communities).

At an international level, the World Organisation for Animal Health (OIE) Global Animal Welfare Strategy is prefaced with the statement that “in recognition of the sentience of animals” the use of animals requires that “any such use is humane.”¹ To fulfill this obligation, the OIE has developed international animal welfare standards² for animals in agriculture, research and for stray dog populations, which have been agreed by the OIE’s 182 member countries. The African Union’s recently adopted Animal Welfare Strategy for Africa³ envisions “an Africa where animals are treated as sentient beings.” The Treaty on the Functioning of the European Union states, “In formulating and implementing the Union’s agriculture, fisheries, transport, internal market, research and technological development and space policies, the Union and the Member States shall, since animals are sentient beings, pay full regard to the welfare requirements of animals.”⁴

Given the growing body of science-based animal welfare policies, a full examination of all multilateral environmental agreements and their interlinkages with international animal welfare policies should be included in the forthcoming gap analysis, as these policy streams are problematically continuing to develop in separate silos.

Scientific developments continue to demonstrate that animals possess sentience — the ability to suffer and experience states of well-being, and, like humans, have feelings, emotions and perceptions. In 2012, a group of neuroscientists signed the Cambridge Declaration on Consciousness⁵ which declared that “the weight of evidence indicates that humans are not unique in possessing the neurological substrates that generate consciousness. Nonhuman animals, including all mammals and birds, and many other creatures, including octopuses, also possess these neurological substrates.” These scientific developments have already had significant impact on policies regarding humanity’s treatment of animals at national, regional and international levels.

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policies should be included in the forthcoming gap analysis, as these policy streams are problematically continuing to develop in separate silos. This can result in implementation of conflicting policies or policies that fail to protect the environment and animals in a way that is consistent with current scientific understanding.

Many of humanity's current uses of animals have dire impacts on the environment.

- Industrial animal agriculture is a key polluter, greenhouse gas emitter, and deforestation driver. It also requires massive amounts of water, as well as pesticide and fertilizer inputs (to produce animal feed). Shifting to higher welfare agroecological systems and healthier levels of consumption of animal products will have a significant impact on one of the key root causes of environmental degradation.
- Our consideration of wildlife as "resources" results in unsustainable consumption patterns which are failing to stem the loss of biodiversity and species extinction, and in some species decreases cultural knowledge transmission and social learning opportunities, which puts whole populations and species at risk, as the Convention on Migratory Species Expert Working Group on Animal Culture and Social Complexity is now beginning to explore. Recognizing and protecting individual members of species can assist in achieving conservation of species and biodiversity.



We broadly welcome the inclusion of the principles set out in the original draft Global Pact for the Environment (the Pact) prepared by the Club des Juristes. We are highly supportive of a number of key principles that have so far been included, such as: the duty to care for the environment, the application of the precautionary approach, the polluter pays principle, access to environmental justice, and the role of non-state actors and subnational entities.

However, the importance of the synergy between the fields of animal law and environmental law cannot be overstated. Addressing animal welfare can play a crucial role in achieving strong environmental protections, and the Pact should therefore recognize that adherence to animal welfare principles will lead to positive impacts for the environment as well as contribute to tackling wider sustainability challenges such as climate change, biodiversity loss, public health and food security.

Animal welfare can and should be considered a substantial gap in existing environmental law and specifically included in the Pact.

The following outlines principles we believe are key gaps that need to be considered for inclusion into the Pact.

ANIMAL SENTIENCE

"...the use of animals carries with it an ethical responsibility to ensure the welfare of such animals to the greatest extent practicable"

There is no recognition in the existing draft of the sentience of animals or the moral obligation to respect their welfare. However, the recognition of animal sentience has now been codified into the Treaty on the Functioning of the European Union and the Animal Welfare Strategy for Africa. From the scientific recognition of animal sentience stems the ethical obligation to protect the welfare of animals, whether they are domestic or wild. An

international policy stream covering animal welfare now exists to mainstream this obligation under the aegis of the World Organisation for Animal Health (OIE), where science-based standards on animal welfare⁶ have been internationally-accepted, and every continent in the world has agreed a strategy for the development of animal welfare.

Animals are an integral part of nature, and deserving of express inclusion in the Pact. However, their sentience and ability to feel states of suffering and well-being means they cannot be treated simply as renewable resources. In the words of the OIE's Guiding Principles for Animal Welfare: "...the use of animals carries with it an ethical responsibility to ensure the welfare of such animals to the greatest extent practicable."⁷

Therefore, as an avowed purpose of the Pact is the harmonization of existing environmental law, this separate, science-based policy stream should be considered and recognized to ensure policy coherence.



ONE WELFARE

One Health is an interdisciplinary concept which recognizes that "human health and animal health are interdependent and bound to the health of the ecosystems in which they exist,"⁸ and is recognized and used by organizations such as the World Health Organization (WHO) and the World Organisation for Animal Health (OIE).

A related concept is new being developed, called "One Welfare," which emphasizes "the many links between animal welfare and human welfare, and to acknowledge that both depend on a well-functioning ecological environment."⁹ More about this conceptual framework can be found in

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the newly published book, *One Welfare: A Framework to Improve Animal Welfare and Human Well-being*.¹⁰

The linkage between animal welfare and human well-being, and the reliance of both on a healthy environment is overlooked in existing environmental law. Including the principle of One Welfare in the Pact would add urgency to the need to protect the environment, and encourage member states to take an interdisciplinary approach to protecting the environment and

animal welfare in order to ensure human well-being.

INTRINSIC VALUE OF NATURE

The right of humans to a safe and healthy environment is critical, as is the duty to care for the environment. However, in order to create a comprehensive picture of environmental protection, non-human nature must also be seen and protected for its intrinsic value.¹¹

In recent decades, conservation of nature has taken on various economic-centred concepts, such as “ecosystem services” and “natural capital.” While these concepts can help build support for conservation, they are the result of certain cultural mindsets and do not necessarily resonate universally. Further, these concepts in many ways risk eliminating recognition of the intrinsic value of nature, and rather than encouraging the protection of nature, legitimize the consumption of it.¹²

There are a number of countries that have now granted “rights” to nature in various ways, including Bolivia, Ecuador, Guatemala, and New Zealand.¹³ In some cases the rights of nature have even been inscribed into national constitutions. The UN Harmony with Nature website reads:

“The law has seen the beginning of an evolution toward recognition of the inherent rights of Nature to



exist, thrive and evolve. This evolving legal approach acknowledges that the traditional environmental regulatory systems generally described herein regard nature as property to be used for human benefit, rather than a rights-bearing partner with which humanity has co-evolved. Rights of Nature is grounded in the recognition that humankind and Nature share a fundamental, non-anthropocentric relationship given our shared existence on this planet, and it creates guidance for actions that respect this relationship.”¹⁴

A global approach to environmental protection may fall short if it is framed only in anthropocentric terms. We welcome the mention of the duty to care for the environment and the prevention of environmental harm. However, we think that the Pact would be strengthened if it also included the principle of the intrinsic value of nature, particularly as a key rationale for duty to care for and prevention of harm to nature.

RIGHT TO SUSTAINABLE FOOD AND FOOD SYSTEMS

Our current food and agriculture system has one of the biggest impacts on the environment of any human activity and without shifting production and consumption patterns it will not be sustainable into the future, given that the world’s human population is projected to grow to 9.7 billion by 2050.

Livestock systems occupy about 30 percent of the planet's ice-free terrestrial surface area.¹⁵ Greenhouse gas emissions from the livestock sector are estimated to account for 14.5% of the global total, more than direct emissions from the transport sector.¹⁶ Meat-based diets use 15 times

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more water than plant-based diets.¹⁷ Livestock production uses 45% of the world's grain.¹⁸ Meat production requires about five times more land per unit of nutritional value than its plant-based equivalent.¹⁹ Deforestation in South America is driven primarily by commercial agriculture and large-scale ranching.²⁰ Industrial animal agriculture's huge demand for cereals as animal feed has fuelled the intensification of crop production. This entails the production of monoculture crops, which are highly

reliant on agrochemical inputs such as fertilizers, herbicides and pesticides. These monocultures and agrochemicals result in land degradation, water pollution, air pollution, and the loss of key pollinators, such as bees.²¹ Replacing all animal-based food items with plant-based diets in the U.S. alone can add enough food to feed 350 million additional people, more than the expected benefits of eliminating all supply chain food loss.²²

Because of these impacts, organizations such as the International Food Policy Research Institute (IFPRI) have begun promoting policies that disincentivize the production and consumption of unsustainable meat and dairy products, while incentivizing healthy fruits and vegetables, as well as technological innovations in alternative proteins.^{23,24}

It would be prescient for the Pact to include the right to sustainable food systems and the need for states to implement policies that reduce the reliance on environmentally harmful foods such as meat and dairy, encourage innovations in protein alternatives, and refine agricultural production by shifting to agroecological approaches that promote food security while protecting the environment.



SUSTAINABLE CONSUMPTION AND PRODUCTION

In order to protect the environment, biodiversity, and a sustainable future for humanity, it is critical to address the systemic over-consumption and mass production patterns that are largely responsible for the continuing trends of climate change, biodiversity loss, pollution and environmental degradation. Achieving more sustainable consumption and production patterns should be mainstreamed and prioritized within the Pact by highlighting the need for governments, citizens and businesses to reduce the impact they have on the environment.

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Many consumers feel disempowered and disconnected from the products they buy, as they are unable to find accessible and relevant information on the impact that the lifecycle of a product has on the environment. There is tremendous power in promoting consumer awareness about the various products they purchase. For example, raising consumer awareness about non-animal



alternatives to cosmetics testing can empower a wider lifestyle change, towards one where the sustainability of a product is increasingly a determining factor for consumers. This type of awareness-raising can also garner strong support—eight million people worldwide have signed a petition organized by Cruelty Free International and global beauty brand, The Body Shop, calling for a global agreement to end cosmetics animal testing.

Achieving sustainable consumption and production patterns worldwide is dependent on consumers being empowered with the information they need to live the more sustainable lifestyles they desire. Every day, millions of consumers make purchasing decisions based on their individual preferences, attitudes and behaviours. Collectively, these decisions shape global patterns of production and consumption that play a key role in determining our environmental future. When combined at scale, individual consumer decisions can be a powerful way to shift consumption and production towards more sustainable levels.

Therefore, a key principle in the Pact should be Sustainable Production and Consumption, by encouraging states to implement policies that support sustainable production practices, sustainable procurement and consumer awareness programs that empower citizens towards sustainable consumption.

WILDLIFE PROTECTION

In light of the continued staggering declines in wild animal populations across the globe,²⁵ largely caused by human activities, and which result in detrimental impacts to the ecosystems that sustain life on earth, it is crucial that the principles set out in the Pact reflect this reality and include wild animal protection considerations, particularly as regards their welfare, which is yet to receive adequate attention.

Firstly, despite the various conventions intended to protect wildlife habitats and species, like the Convention on Biological Diversity and the Convention on Migratory Species, threats to wildlife continue to intensify. This is in part because there is a gap in implementation, with a lack of coherence streamlining funding mechanisms, where these exist, as well as mechanisms to ensure accountability and compliance. The Pact could make an important contribution by providing an overarching means of recourse if environmental obligations are not met by convention parties and to expand the concept of “duty to care” to ensure that member states properly resource their obligations under existing environmental law.

Secondly, wild animal welfare law is sparse, and often incidentally derives from measures designed to conserve species and their habitats, despite the conspicuous impacts of not protecting individual

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wild animals on our collective future. For example, the broad implications of the wildlife trafficking crisis on biodiversity, species conservation, and human health result in part from the ways in which live traded animals are treated, which is addressed by CITES, illustrating the need for the well-being of individual wild animals to be associated with wider concerns and enshrined within environmental principles. Therefore, the Pact should acknowledge the moral responsibility to avoid or mitigate

human activities that affect the welfare of wild animals, whether free-living or in captivity, and take account of 'knock-on' impacts on conspecifics or wider fauna. It should also be made clear that the principle of duty to care for the environment applies to all species of wild fauna and flora dependent on it.

Finally, in recognizing our responsibility to prevent wild animal suffering and extinction, a presumption of protection for all species, including those not currently afforded a level of protection by international conventions and other multilateral environmental agreements, should be adopted to ensure policy coherence. This is a sentiment reflected in A/RES/70/1, *Transforming Our World: the 2030 Agenda for Sustainable Development*, which envisions a world "in which humanity lives in harmony with nature and in which wildlife and other living species are protected."²⁶

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